

HOUSE BILL 867

By Hicks T

AN ACT to amend Tennessee Code Annotated, Title 56;
Title 63; Title 68 and Title 71, relative to maternal
health.

WHEREAS, remote patient monitoring services are already covered services by
TennCare; and

WHEREAS, pregnancies impacted by maternal hypertension and maternal diabetes are
more likely to have pregnancy complications; and

WHEREAS, maternal health outcomes remain poor in Tennessee; and

WHEREAS, there is a need to establish in Tennessee a targeted maternal health
program that impacts pregnant recipients of medical assistance who have higher risks of
pregnancy complications because of their maternal hypertension or maternal diabetes; now,
therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 5, is amended by adding
the following as a new part:

71-5-801. Definitions.

As used in this part:

- (1) "Bureau" means the bureau of TennCare;
- (2) "Director" means the director of TennCare;
- (3) "Eligible participant" means a patient who:
 - (A) Is a recipient of medical assistance under this chapter;
 - (B) Is a member of a participating managed care organization; and
 - (C) Is pregnant;

(4) "Healthcare provider" means an obstetrician or maternal fetal medicine physician who:

(A) Is licensed in this state under title 63, chapter 6 or 9; and

(B) Is caring for an eligible participant during pregnancy;

(5) "Nursing team" means a team of two (2) or more nurses licensed under title 63, chapter 7, and at least one (1) dietitian or diabetes care and education specialist who is licensed, certified, or authorized or permitted by the laws of this state to administer health care in the ordinary course of practice of such professions;

(6) "Participating managed care organization" means the managed care organization selected by the bureau to administer the pilot program;

(7) "Pilot program" means the maternal health monitoring pilot program;

(8) "Remote patient monitoring for maternal hypertension and maternal diabetes" or "remote patient monitoring devices" means technology provided by a technology vendor that:

(A) Collects health data from an eligible participant and electronically transmits that information securely for interpretation and recommendation;

(B) Monitors health data, including blood pressure, weight, blood glucose levels, or other physiological health data as determined by the eligible participant's healthcare provider;

(C) Is capable of transmitting health data through cellular networks so eligible participants who lack broadband or a wireless telecommunications device can benefit; and

(D) Is preprogrammed equipment provided specifically for an eligible participant that works directly out of the box for that specific eligible participant; and

(9) "Technology vendor" means a technology company that is authorized by the United States food and drug administration to provide technology services, and that is selected by the bureau to contract with the participating managed care organization in administering the pilot program.

71-5-802. Establishment of pilot program.

The maternal health monitoring pilot program is to be administered by the bureau to offer eligible participants improved maternal health care through remote patient monitoring for maternal hypertension and maternal diabetes.

71-5-803. Administration of pilot program.

The bureau shall select a managed care organization and technology vendor to administer the pilot program in a manner determined by the bureau. For the purpose of administering the pilot program, the participating managed care organization shall contract directly with a technology vendor to offer remote patient monitoring for maternal hypertension and maternal diabetes.

71-5-804. Remote patient monitoring for maternal hypertension and maternal diabetes requirements.

(a) When offering remote patient monitoring for maternal hypertension and maternal diabetes to an eligible participant under the pilot program, the technology vendor shall ensure that:

(1) Remote patient monitoring for maternal hypertension and maternal diabetes is possible during the second and third trimesters and for up to three (3) months postpartum;

(2) Remote patient monitoring devices are delivered to the eligible participant; and

(3) The eligible participant has a process to be trained in how to use the remote patient monitoring devices.

(b) The technology vendor shall:

(1) Employ a healthcare provider or a nursing team; and

(2) Assign a program manager to support implementation and administration of this pilot program and to coordinate efforts with participating managed care organizations and the bureau.

(c) The technology vendor's healthcare provider or nursing team must be capable of supporting the eligible participant by:

(1) Monitoring and reviewing health data of the eligible participant;

(2) Creating an agreed-upon escalation pathway with the managed care organization if the eligible participant's remote patient monitoring readings, in conjunction with the eligible participant's symptoms, require immediate attention from the eligible participant's healthcare provider; and

(3) Providing health coaching to the eligible participant in matters including nutrition, condition management, and healthy behavior modification.

71-5-805. Pilot participation goals.

The bureau shall implement the pilot program in as many counties as necessary to ensure participation of no less than three hundred (300) eligible participants. The participating managed care organization shall ensure that eligible participants in the counties selected by the bureau have access to the pilot program. The pilot program must be operational no later than one hundred eighty (180) calendar days after the date on which the contract is entered between the participating managed care organization and the technology vendor.

71-5-806. Fee payment for administration of pilot program.

Subject to appropriations or the availability of funds, the bureau shall pay a fee to the participating managed care organization to administer the pilot program. The participating managed care organization shall contract with the technology vendor. Payment for contracting with the technology vendor must be bundled to include costs of providing remote patient monitoring for maternal hypertension and maternal diabetes as provided in this part. It is the legislative intent that an initial appropriation of six hundred thousand dollars (\$600,000) be appropriated in fiscal year 2025-2026 and each subsequent fiscal year to offset the costs of the pilot program.

71-5-807. Operation of pilot program.

The bureau shall implement the pilot program as necessary to ensure participation of a statistically relevant number of eligible participants.

71-5-808. Report.

On or before January 1, 2026, and on or before January 1 each year thereafter, the bureau shall submit a report, in consultation with the participating managed care organization and technology vendor, on the evaluation of the pilot program, including recommendations regarding whether the pilot program should be expanded throughout this state, to the speaker of the house of representatives, speaker of the senate, chair of the health and welfare committee of the senate, and the chair of the committee of the house of representatives having jurisdiction over health-related matters.

71-5-809. Rulemaking.

The director is authorized to promulgate rules to effectuate this part. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is

requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.